Sushant Muttreja vs Serious Fraud Investigation Office on 20 December, 2023

Author: Jyoti Singh

Bench: Jyoti Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
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+ BAIL APPLN. 1287/2023

SUSHANT MUTTREJA ..
Through: Mr. Trideep Pais, S
with Ms. Sanya Kumar, Advoca
Petitioner in person.

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SERIOUS FRAUD INVESTIGATION OFFICE .....
Through: Mr. Amit Tiwari, S
Counsel with Mr. Vedansh An
Pleader, Mr. Shubham, Mr. A
Nupur, Advocates

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+ BAIL APPLN. 1289/2023

NISHANT MUTTREJA .
Through: Ms. Tara Narula, Ad
with Petitioner in person.

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SERIOUS FRAUD INVESTIGATION OFFICE .....
Through: Mr. Amit Tiwari, S
Counsel with Mr. Vedansh An
Pleader, Mr. Shubham, Mr. A
Nupur, Advocates
CORAM:
HON'BLE MS. JUSTICE JYOTI SINGH

OR

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This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 21/12/2023 at 00:30:32 CRL.M.A. 34844/2023 (seeking extension of interim bail, by Applicant) CRL.M.A. 34833/2023 (seeking extension of interim bail, by Applicant)

1. CRL.M.A. 34844/2023 has been filed on behalf of the Applicant Sushant Muttreja s/o late Sh. Subhash Muttreja under Section 482 Cr.P.C. seeking extension of interim bail in case CC/1313/2021 titled as 'Serious Fraud Investigation Officer v. Cosmic Structure Limited & Ors., granted on 22.11.2023 in CRL.M. (BAIL) 1333/2023 in BAIL APPLN. 1287/2023, till the next date of hearing i.e. 30.01.2024.

2. CRL.M.A. 34833/2023 has been filed on behalf of the Applicant Nishant Muttreja s/o late Sh. Subhash Muttreja under Section 482 Cr.P.C. seeking extension of interim bail in case CC/1313/2021 titled as 'Serious Fraud Investigation Officer v. Cosmic Structure Limited & Ors., granted on 22.11.2023 in CRL.M. (BAIL) 1327/2023 in BAIL APPLN. 1289/2023, till the next date of hearing i.e. 30.01.2024.

3. Extension of interim bail is sought on the ground that efforts are being made by the Applicants to resolve the issues so that the 6 projects are revived and the investors/home buyers are able to retrieve their hard earned savings. Learned Senior Counsel appearing for the Applicant in BAIL APPLN. 1287/2023 and Ms. Tara Narula, learned counsel for the Applicant in BAIL APPLN. 1289/2023 submit that fresh applications filed by the Applicants are likely to be listed before the Company Court on 21.12.2023 or 22.12.2023 and all endeavours are being made to ensure that the proposed schemes placed before the Company Court are taken to their logical end. It is further stated that the 6 projects in respect of which steps for revival are This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 21/12/2023 at 00:30:32 being taken have been tabulated in the applications. On 15.12.2023, Applicants have already filed a Scheme of Settlement, Compromise and Arrangement between M/s Cosmic Structures Limited and its members, creditors and customers before the Company Court in Company Petition No.152/2016. The scheme consists of a proposal to revive the company and recoup the projects in respect of which the Applicants have previously suffered losses and litigation as well as incarceration. It is further stated that for 2 out of the 6 projects, i.e., Cosmic Masterpiece and Cosmic Urban Young, Applicants have tied up with the co-developer by the name of M/s Renowned Buildtech Pvt. Ltd. who has agreed to infuse Rs.185 crores of its own resources to resume construction, complete the projects and deliver the same to the buyers in 4 years. Similarly, Applicants have managed to secure other partners or co-developers who have expressed interest in working of the other projects and take them to their completion. The Applicants have obtained commitments from M/s Sarvottam Industrial Real Estate Private Limited and Indo World Infrastructures Private Limited in this behalf. It is therefore urged that if the interim bails are not extended, all the efforts will be in vain and ultimately the investors would suffer. Learned counsel for the Respondent candidly submits that if genuine efforts are being made by the Applicants, he has no opposition to the extension of the interim bails as the interest of the investors is paramount.

4. Having heard the parties at some length, the interim bails granted to the Applicants vide order dated 22.11.2023 are hereby extended for a further period of three weeks from 21.12.2023, on the same terms and conditions as enumerated in the order dated 22.11.2023.

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5. Steps taken by the Applicants towards revival of the projects and the outcome of the proceedings before the Company Court will be placed on record by the Applicants by way of respective affidavits.

6. List the applications on 08.01.2024.

7. Copy of the order be sent to the Jail Superintendent concerned for information and necessary compliance.

JYOTI SINGH, J DECEMBER 20, 2023/kks/shivam This is a digitally signed order.

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